

PERMANENT COURT OF INTERNATIONAL
JUSTICE.

THIRD SESSION

1923.
June 28th.
File E. b. II.
Docket III. 1.

CASE OF THE S.S. "WIMBLEDON"

Applicants :

The Governments of His Britannic Majesty ;
of the French Republic ;
of His Majesty the King of Italy ;
of His Majesty the Emperor of Japan.

Respondent :

The Government of the German Empire ;

Intervener :

The Government of the Polish Republic.

QUESTION OF INTERVENTION BY POLAND.

The Court, composed as follows :

MM. LODER, *President*,
WEISS, *Vice-President*.

Lord FINLAY,	}	<i>Judges.</i>
MM. NYHOLM,		
MOORE,		
DE BUSTAMANTE,		
ALTAMIRA,		
ODA,		
ANZILOTTI,		
HUBER.		

WANG, *Deputy-judge*

M. SCHÜCKING *National Judge.*

having heard the observations and conclusions of the parties,
delivers the following judgment :

The Statute of the Permanent Court of International Justice provides for two sets of circumstances and two different forms in which intervention is possible on the part of States which are not from the outset concerned in a suit brought before it.

The first of these forms of intervention is that dealt with in Article 62 of the Statute and Articles 58 and 59 of the Rules of Court ; it is based on an interest of a legal nature advanced by the intervening party, and the Court should only admit such intervention if, in its opinion, the existence of this interest is sufficiently demonstrated.

On the other hand, however, when the object of the suit before the Court is the interpretation of an international convention, any State which is a party to this convention has, under Article 63 of the Statute, the right to intervene in the proceedings instituted by others and, should it make use of the right thus accorded, the construction given by the judgment of the Court will be equally binding upon it as upon the original applicant parties.

According to the terms of an application instituting proceedings dated January 16th, 1923, and submitted on behalf of the Governments of His Britannic Majesty, of the French Republic, of His Majesty the King of Italy and of His Majesty the Emperor of Japan, represented respectively by Sir Cecil Hurst, Professor Basdevant, Commendatore Pilotti and Monsieur N. Ito, Chargé d'Affaires a. i. of Japan at The Hague, the Permanent Court of International Justice has to decide whether the German authorities were within their rights in refusing to the S.S. "Wimbledon" on March 21st, 1921, free access to the Kiel Canal, and, if necessary, to determine the damages due for the prejudice caused to this vessel by reason of this refusal.

In a Note dated May 22nd, 1923, His Excellency the Minister of the Polish Republic at The Hague informed the Court that his Government desired permission to intervene in the suit on the side of the four applicant States, under Article 62 of the Statute and Articles 58 and 59 of the Rules of Court ; but, although Article 63 was not expressly referred to, the above-mentioned Note cited, in support of the application, Poland's

participation in the Treaty of Versailles, and the violation of the rights and interests guaranteed to Poland under Article 380 of that Treaty, resulting from the refusal to allow the "Wimbledon" access to the Kiel Canal.

From a further communication made to the Court by M. Olechowski, Agent of the Polish Government, at the public sitting of June 25th, it appears that that Government, abandoning the exclusive course which it seemed in the first instance to have adopted, now intends to avail itself of the right conferred upon it, as a party to the Treaty of Versailles, by Article 63 of the Statute and "does not insist that the grounds submitted by it as justification for intervention under Article 62 should be taken into consideration". It also states that it does not intend to ask the German Government for any special damages for the prejudice caused to it in the case of the "Wimbledon".

The attitude thus adopted renders it unnecessary for the Court to consider and satisfy itself whether Poland's intervention in the suit before it is justified by an interest of a legal nature, within the meaning of Article 62 of the Statute.

It will suffice for the Court to note that in this case the interpretation of certain clauses of the Treaty of Versailles is involved in the suit and that the Polish Republic is one of the States which are parties to this treaty.

In view of the facts established above, which are conclusive, and of the statements made at the hearing by the representatives of the applicant Powers, who left the matter to the decision of the Court,

the Court records that the Polish Government intends to avail itself of the right to intervene conferred upon it by Article 63 of the Statute.

FOR THESE REASONS.

the Court accepts the intervention of Poland in the case of the S.S. "Wimbledon",

and adjourns the hearings on the merits of the case until the sitting to be held on July 5th.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this twenty-eighth day of June, nineteen hundred and twenty-three, in seven copies, one of which is to be deposited in the Archives of the Court, and the others to be forwarded to the Agents of the Polish Government and of the applicant and respondent Powers, respectively.

(Signed) LODER,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.